

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. RG PC DLNFU

STIPULATION AND ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS AGAINST THE LICENSE TO
PRACTICE PSYCHOTHERAPY IN THE STATE OF COLORADO OF JOHN DEL SIGNORE,
LICENSE NO. 2518

Respondent,

IT IS HEREBY STIPULATED and agreed by and between the State Board of Licensed Professional Counselor Examiners ("Board") and John Del Signore, MA., LPC ("respondent"), as follows:

1. The Board has jurisdiction over the person of respondent and the subject matter set forth in this Stipulation and Order.
2. The Board granted respondent a license to practice professional counseling in Colorado on June 7, 2000. Respondent was issued license number 2518.
3. On or about September 7, 2001 the Board received a complaint against respondent alleging practice below generally accepted standards of practice, dual relationship, and sexual misconduct.
4. Following investigation of the complaint the Board determined that reasonable grounds existed to refer this matter to its legal counsel, the Colorado Attorney General, for initiation of disciplinary action regarding respondent's practice of professional counseling.
5. Respondent understands that he has the right to a hearing with respect to the complaint filed against him. Respondent further understands and agrees that, by voluntarily and knowingly entering into this Stipulation and Order, he waives his right to a hearing; relieves the Board of its burden of proving a violation of the Colorado Mental Health Statute; gives up his right to present a defense by oral and documentary evidence; and gives up his right to cross-examine witnesses. Respondent understands that he has the right to appeal the Board's final order to the Court of

Appeals. Respondent further understands and agrees that, by voluntarily and knowingly entering into this Stipulation and Order, he waives his right to appeal or otherwise contest the validity of the final Board order entered pursuant to this stipulation.

6. Respondent agrees that he freely and voluntarily enters into this agreement including a practice evaluation, practice monitoring, and education.

7. The Board could establish a prima facie case of violations of the Colorado Mental Health Act and respondent could introduce evidence to refute the Board's case. The parties wish to avoid the time and expense of litigating this matter and therefore agree to this Stipulation and Order. The Board asserts there were the following violations:

a. Respondent entered into a professional and therapeutic relationship with a client as part of his practice of professional counseling to provide the client with treatment as provided in C.R.S. §12-43-601.

b. During the course of the therapeutic relationship with the client respondent acted or failed to act in a manner which does not meet generally accepted standards of practice in violation of C.R.S. §12-43-222(1)(g).

c. During the course of the therapeutic relationship respondent maintained a relationship with the client that was likely to impair his professional judgment or increase the likelihood of client exploitation in violation of C.R.S. §12-43-222(1)(i)

d. During the course of the therapeutic relationship or within six months after the therapeutic relationship existed respondent engaged in sexual contact and sexual penetration with the client in violation of C.R.S. §12-43-222(1)(r).

8. The Board hereby orders that respondent shall cease practice until he undergoes a practice evaluation and is found safe to practice before resuming professional counseling. The practice evaluation shall be conducted by a Board approved mental health provider ("practice evaluator") who will make a recommendation on respondent's ability to practice professional counseling in accordance with generally accepted standards of practice, with skill and safety for his clients and if respondent has the necessary qualifications, current ability, and competence to practice professional counseling. The practice evaluation shall involve all aspects of respondent's proposed practice of professional counseling and his qualifications, current ability and competence to practice professional counseling. Should the practice evaluator recommend that respondent has the qualifications, current ability, and competence to engage in the practice of professional counseling in accordance with generally accepted standards of practice, with skill and safety for his clients; and has been found safe to practice by that evaluation, respondent may practice professional counseling on probation. If found safe to practice, Respondent's practice of professional counseling

shall be on probation for a period of at least two years. Respondent shall not practice professional counseling until he has a Board-approved mental health provider who shall monitor his practice of professional counseling ("practice monitor"). During the period of probation respondent can practice professional counseling only if he complies with all conditions of the probation and has a practice monitor in place.

a. Should the practice evaluator determine that respondent can not practice professional counseling in accordance with generally accepted standards of practice and with skill and safety for his clients, or does not have the appropriate qualifications, current ability, or competence for his proposed practice of professional counseling and the Board accepts this finding, respondent shall not resume the practice of professional counseling or until such time as the Board determines he is qualified and safe to practice professional counseling. Based on the findings and recommendations of the evaluator, the Board shall determine necessary actions that respondent must take and conditions he must meet so that he can become qualified, competent, and safe to practice professional counseling. Once respondent satisfies the Board that he has taken the appropriate actions and met the conditions so that he is qualified, competent, and safe to practice professional counseling or, he may resume the practice of professional counseling.

b. Respondent is subject to probation with a practice evaluation before resumption of practice, practice monitoring, and education. During this period of probation respondent can practice professional counseling only if he complies with the conditions of the probation and has a practice monitor in place.

9. The conditions of respondent's probation are:

a. Respondent will strictly observe the prohibitions set forth in C.R.S. §12-43-222(1) and assure that he does not engage in any activities that are prohibited activities or fall below generally accepted standards of practice.

b. Respondent's practice of professional counseling must be monitored by a Board-approved practice monitor, who both monitors his practice and reports in writing to the Board in accordance with this order. The practice monitoring shall be conducted as follows:

(i) Respondent's practice monitor shall monitor all of his cases. The practice monitoring shall consist of individual face-to-face contact between respondent and his practice monitor that occurs for one hour or such longer time as the practice monitor deems necessary for every 20 hours of client contact, but at least once a month. During practice monitoring, respondent and his practice monitor must review and discuss each of respondent's active cases at least once each month to allow the practice monitor to determine whether respondent is practicing professional counseling in accordance with generally-accepted standards of practice and with skill and safety for his clients.

(ii) The practice monitor is authorized to examine and shall examine such client records and case files maintained by respondent as the practice monitor or the Board deems appropriate and necessary to determine whether respondent is practicing professional counseling in accordance with generally-accepted standards of practice and with skill and safety for his clients.

(iii) The practice monitor shall report the results of monitoring to the Board in writing and send a copy of each report to the respondent. The practice monitor must submit her/his first report on the fifth day of the month following the first full month of practice monitoring. The practice monitor shall submit subsequent reports on the fifth day of each month thereafter (i.e. on a monthly basis) for the first 12 reports. Following submission of the first twelve reports, unless otherwise directed by the Board, the practice monitor shall submit her/his reports on the fifth day of every third month (i.e. on a quarterly basis).

(iv) After the Board's written approval of the practice monitor, respondent and the practice monitor shall enter into a written contract for monitoring. The practice monitor shall provide a copy of that written contract to the Board as part of her/his first report to the Board. The contract must contain a provision stating that the practice monitor has received a copy of this order and of the Board's file; has read these documents; and understands the duties and responsibilities s/he is undertaking as respondent's practice monitor. The practice monitor shall assure that a written notification is provided to each client informing the client of the name address and telephone number of the practice monitor. This written notification may be provided in a mandatory disclosure statement.

(v) If, at any time, the practice monitor is of the opinion that respondent is not practicing professional counseling in accordance with generally accepted standards of practice or has a condition which renders him unable to treat clients with skill and safety or which may endanger the health or safety of persons under his care, the practice monitor shall report her/his opinion and the basis for that opinion to the Board. The practice monitor shall make that report in writing and within 48 hours of forming her/his opinion. The practice monitor shall send a copy of that report to the respondent and the therapist when he/she sends the report to the Board. Once such a report is submitted respondent shall immediately cease the practice of professional counseling.

(vi) Either respondent or his practice monitor may terminate the monitoring relationship on written notice to the other and to the Board not less than 60 days before the date of termination. The notice shall state the reason for the termination. In the event respondent does not have another Board-approved practice monitor prior to the termination, respondent shall cease the practice of professional counseling until he obtains another Board-approved practice monitor. The new practice monitor's responsibilities shall be in accordance with this Stipulation and Order.

(vii) During the period of probation respondent shall not practice professional counseling without an approved practice monitor in place.

c. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing mental health services unless such supervision or consultation is monitored by respondent's practice monitor in accordance with the provisions of paragraph 9b.

d. Respondent shall complete a minimum of twenty (20) hours of Board-approved professional continuing education during each year of probation in the areas of client/therapist boundary and dual relationship issues and other legal/ethical issues related to the practice of professional counseling. Completion of an approved jurisprudence workshop shall be required as part of this education requirement.

e. Respondent must take reasonable steps to assure that his practice monitor and provides reports to the Board.

f. Respondent, not the Board, shall be responsible for any costs and/or expenses incurred for the practice evaluation, practice monitoring, education, or any other action required in fulfilling the requirements of this order.

g. Respondent must provide written notification to every professional counseling client who he provides any professional counseling services to while this order is in effect, informing the client of the name, address, and telephone number of his practice monitor. Such notice may be provided in a mandatory disclosure statement.

h. During the pendency of this order respondent agrees that he will provide permission to and allow his practice evaluator and practice monitor to provide medical or psychological information or records to the Board in the event the practice evaluator or practice monitor, determine that respondent is not practicing professional counseling in accordance with generally accepted standards of practice or has any condition which renders him unable to treat clients with skill and safety or which may endanger the health or safety of persons under his care. As part of this Stipulation and Order respondent explicitly waives his right to maintain confidentiality of medical and psychological records and information provided to the practice evaluator, and practice monitor if the, practice evaluator, practice monitor, determines that he is not practicing professional counseling in accordance with generally accepted standards of practice or has any condition which renders him unable to treat clients with skill and safety or which may endanger the health or safety of persons under his care.

10. All time periods and obligations of the practice monitoring, and education as stated in this order run only while respondent is engaged in the practice of professional counseling in

Colorado under the monitoring of a Board-approved practice monitor and in therapy with a Board-approved practice monitor. They are tolled and suspended at all other times.

11. If, after resuming the practice of professional counseling in Colorado, respondent again discontinues the practice of professional counseling in Colorado, he shall notify the Board, in writing, within thirty (30) days of ceasing practice. This notification shall include the date he ceased practicing and his new address if he has moved.

12. In the event respondent resumes his practice of professional counseling in Colorado after stopping practice as described in paragraph 11, he shall provide written notification to the Board prior to resuming the practice of "professional counseling" in Colorado. Such notification shall include his address and the date on which he intends to resume the practice of "professional counseling".

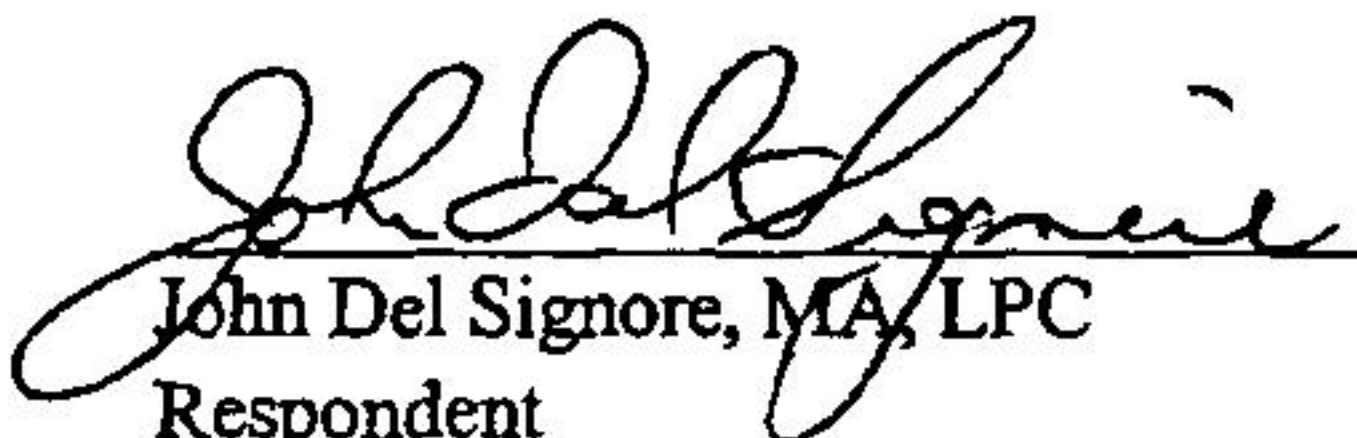
13. No agreement, understanding, representation, or interpretation not contained in this order may be used to vary or to contradict its terms.

14. Each party shall bear its own costs, shall pay its own witness fees, and shall pay its own attorney fees.

15. Each provision of this order is separate. In the event of litigation involving compliance with the terms of this order, the issues will be restricted to those raised by the interested parties; the resolution of those issues will affect only the pertinent parts of the order; and the parties will be obligated by the judicially-construed parts of the order as if they were part of the original order.

16. This Stipulation and Order shall take effect on acceptance and signature by the Board.

17. This Stipulation and Order is a public record.


John Del Signore, MA, LPC
Respondent

DATED: 3/8/02

ACCEPTED, SIGNED, AND ORDERED this 19 day of March, 2002.

STATE BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS

Thomas D. Graves

Thomas Graves, MA, LPC
Board Chair

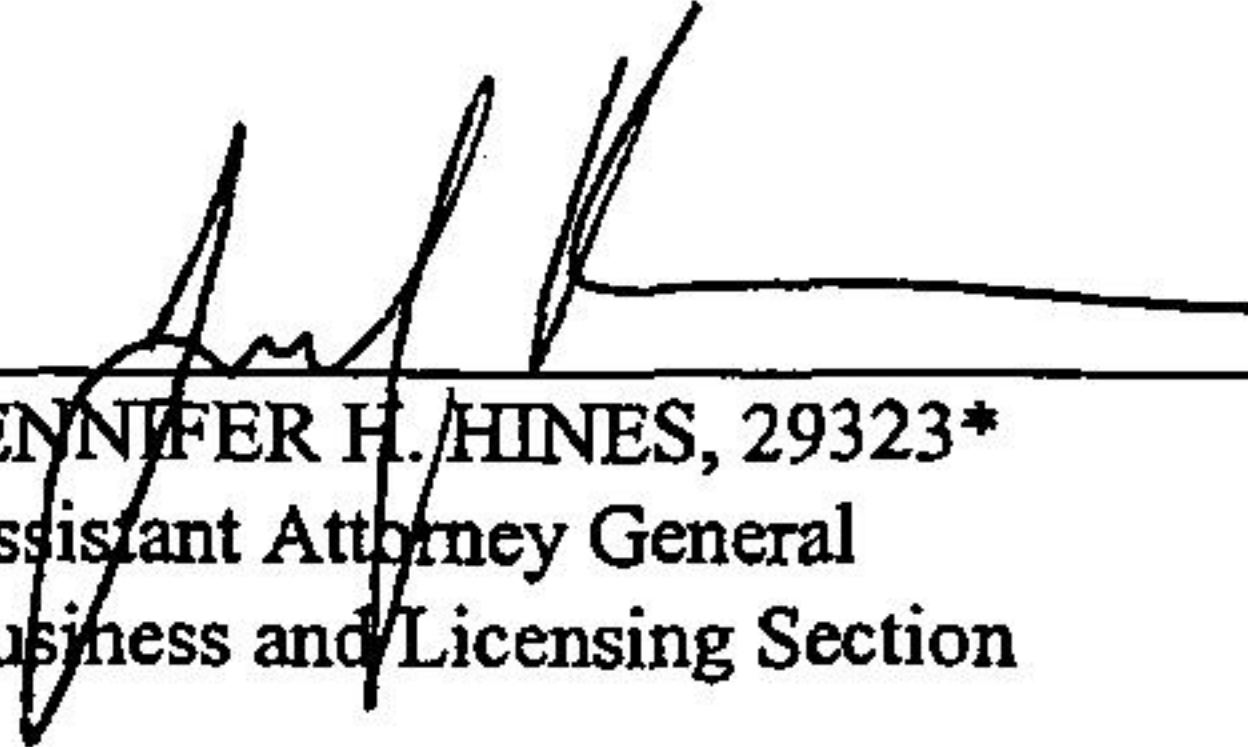
APPROVED AS TO FORM

FOR THE RESPONDENT



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